

SFIO Vs. Adarsh Build Estate Ltd

CIS COMA/05/2019

Present: Sh. Vishal Gupta learned counsel for applicant.
Sh. Hari Kishan, learned prosecutor on behalf of SFIO

An application seeking permission to travel abroad filed by applicant Raj Kumar Bohra in COMA/05/2019 titled as Serious Fraud Investigation Office Vs. Adarsh Build Estate Ltd and others. The application is supported by his affidavit.

2. It is averred in the application that applicant is a NRI. His wife Nita Bohra and three children are staying in Dubai, UAE. His wife is suffering from severe depression and he has to take care of his wife and children. UAE is his primary place of business as applicant is managing partner of RKC International General Trading LLC. The major export business of applicant is in Bangladesh and owing to his business obligations, he frequently travels from India to UAE and Bangladesh. It is averred that earlier also applicant had travelled abroad and returned well in time.

3. Instead of filing reply in writing, learned prosecutor for SFIO opted to contest the application verbally.

4. The reasons mentioned in the application in hand seeking seem to be genuine. It may be added here that many a times earlier,

permission was granted to the applicant to travel abroad and every time, he complied with the directions issued by the Court. Keeping in view the facts mentioned in the application as well as the previous conduct of the applicant, this Court is inclined to accede to the request made by him. Hence, the applicant-accused Raj Kumar Bohra seeking permission to travel abroad after 03.05.2024, subject to the following terms and conditions:

(i) That prior to leaving the country the applicant will furnish security of some immovable property/bank guarantee worth Rs.One Crores in favour of this court and in case he misuses the concession to travel abroad, then the security amount would be forfeited to State.

5. The surety Ajay Kumar Arora had furnished affidavit to the effect that he had already stood surety for accused Raj Kumar and submitted a security of Rs.One crore. He stated that he is willing to continue as a surety on behalf of accused Raj Kumar and undertake to produce accused Raj Kumar as and when ordered by the Court.

6. Accordingly application disposed off and tagged with the main case file.